

26NNCV01534 26NNCV01534

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-07

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Case Number: 26NNCV01534 Hearing Date: August 7, 2026 Dept: E

Case No:

26NNCV01534

Hearing Date: 08/07/2026 – 8:30 a.m.

Trial

Date: UNSET

Case Name: YOUNG TRAD, an individual; and SAMI TRAD, an individual v.
PARAGON SYSTEMS, INC., et al.

[TENTATIVE RULING MOTION TO STRIKE]

RELIEF REQUESTED

Defendant, Ana Reyes, moves to strike the punitive damages allegations in Plaintiffs' Complaint as to the first, second, third, and fourth causes of action, as well as Plaintiffs' Prayer for Relief, on the ground that the Complaint fails to allege facts sufficient to support recovery of punitive damages.

Defendant moves pursuant to CCP §§ 435, 436, 437, 431.10, and Civil Code § 3294.

PROCEDURAL

Moving Party: Defendant,
Ana Reyes

Responding Party: Plaintiffs, Young Trad and Sami Trad

Moving Papers: Motion; Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply

Meet and Confer

As explained in the CCP, section 435.5:

Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.

(CCP, § 435.5(a).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (CCP, § 435.5(a)(4).)

Here, Defendant’s counsel alleges that a meet and confer occurred.

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO
STRIKE

Lack of Professionalism by Counsel - Service

Plaintiffs'

and Defendant's counsel both waste the Court's time with a preliminary procedural matter that could be avoided if the parties' counsel acted in a professional manner.

Further,

both parties' counsel do not provide on-point legal authority to address the procedural issue that they bring up.

Here, the

preliminary procedural issue is that the parties do not agree on what the operative complaint is in this action.

Defendant's

motion to strike first brings up the allegation that Plaintiffs never served the First Amended Complaint (FAC) on Defendant, Ana Reyes. (Def. Mot., p. 4.) Defendant then explains that during the meet and confer process, Plaintiffs' counsel stated that Plaintiffs have no legal obligation to serve the FAC on Defendant. (Id.)

Defendant

thus assumes that this motion to strike, which attacks punitive damages, is targeted at the original/initial complaint [filed 3/2/2026], as indicated in Defendant's notice of motion, and not at the FAC [filed 4/3/2026], because the FAC was never served on Defendant.

Typically,

the Court would ignore Defendant's argument because Defendant's motion to strike does not attack service, nor has Defendant filed a motion to quash service of summons.

However,

in opposition, Plaintiffs argue that Defendant's motion to strike is moot because Plaintiffs filed a FAC, and an amended complaint supersedes the original complaint.

In

reply, Defendant argues that the motion to strike is not moot because it

properly addresses the operative pleading, the original complaint.

The

Court to hear argument for the reasons explained below.

Overall,

both parties' papers are unhelpful to the Court in determining whether or not this motion to strike, targeted at the original complaint, is moot, or whether the FAC needs to be served on Defendant. Further, both parties could have more efficiently resolved this issue without resorting to law and motion practice.

Service Issue 1

The

first issue that the Court wants the parties to address is an issue that neither party brings up.

That

issue is: Is Defendant's motion to strike timely, and is it proper for Defendant to file both a motion to strike and an answer at the same time?

Plaintiffs'

original complaint was filed on 3/2/2026, and it was served on moving Defendant, Ana Reyes, via personal service on 4/1/2026.

On

4/3/2026, Plaintiffs filed their FAC, but they did not serve the FAC to Defendant, Ana Reyes.

On

6/10/2026, Defendant Ana Reyes filed and served her Answer to the original complaint, and on 6/10/2026 Reyes also filed and served her motion to strike targeted at the original complaint. [The Court emphasizes that Reyes' Answer and Motion to Strike were filed and served after the filing of the FAC; however, the FAC was not served on Reyes.]

"Any

party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time

limitation shall not apply to motions specified in subdivision (e)." (CCP §, 435(b)(1)."

[The

Court notes that subdivision (e) of section 435 cites to section 438(i)(1)(A) which pertains to motions for judgment on the pleadings. (See CCP §§ 435(b)(1), 435(e), and 438(i)(A)(1).]

To the

Court's understanding, a response is due within 30 days after summons is served on defendant. (See CCP § 412.20(a)(3) and CRC, rule 3.110(d).)

Therefore,

if a response should be filed with the court within 30 days after summons is served on defendant, how is Defendant's motion to strike, that is filed and served on 6/10/2026, timely when the original complaint was served on 4/1/2026? Further, is it proper for Defendant to file both a motion to strike and an answer on 6/10/2026? The Court to hear argument, because neither party addresses these issues.

Service Issue 2

The

second issue the Court wants the parties to address is whether or not Defendant's motion to strike, targeted at the original complaint, is moot.

Plaintiffs

cite to State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124 to argue that Defendant's motion to strike is moot due to Plaintiffs' filing of the FAC because an amended complaint supersedes the original complaint.

Notably,

Plaintiffs' opposition does not argue that they served Defendant Reyes the FAC.

In relevant

part of State Compensation Ins. Fund:

" 'It is well established

that an amendatory pleading supersedes the original one, which ceases to

perform any function as a pleading.’ ” (Foreman & Clark Corp. v. Fallon, supra, 3 Cal.3d at p. 884, 92 Cal.Rptr. 162, 479 P.2d 362, quoting Meyer v. State Board of Equalization (1954) 42 Cal.2d 376, 384, 267 P.2d 257.) Thus, an amended complaint supersedes all prior complaints. (Grell v. Laci Le Beau Corp. (1999) 73 Cal.App.4th 1300, 1307, 87 Cal.Rptr.2d 358; Lee v. Bank of America (1994) 27 Cal.App.4th 197, 215, 32 Cal.Rptr.2d 388; 1 Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2009) *1131 ¶ 6:704, p. 6–177.) The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment. **93 (Anmaco, Inc. v. Bohlken (1993) 13 Cal.App.4th 891, 901, 16 Cal.Rptr.2d 675.)

(State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1130-1131.)

Problematic

with Plaintiffs' citation to State Compensation Ins. Fund is that it does not address the issue before this Court. In State Compensation Ins. Fund, the Court of Appeal held that the filing of an amended complaint rendered a motion for summary adjudication, that was targeted at the original complaint, moot based on the filing of the amended complaint. (State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1128 & 1131.)

State

Compensation Ins. Fund does not address whether or not the amended complaint in that action was first served.

Plaintiffs

do not come forward with any authority to support their argument that the filing of an unserved amended complaint supersedes a prior complaint.

The

Court will hear argument on whether or not Defendant's motion to strike, targeted at the original complaint, is moot. The Court is inclined to find that Defendant's motion to strike is not moot because Plaintiffs argue that the motion to strike is moot, but they do not come forward with any

on-point legal authority stating that an unserved amended complaint supersedes the filing of an original complaint.

Service Issue 3

The third matter the Court wants the parties to discuss at the hearing is as follows: Is the issue of whether or not Plaintiffs have to serve Defendant the FAC even before this Court?

Although Defendant's motion to strike explains that Plaintiffs argued that Plaintiffs do not have to serve the FAC, Plaintiffs' opposition does not bring up the issue of whether or not Plaintiffs needed to serve the FAC on Defendant. Plaintiffs' opposition just assumes the amended complaint supersedes the original complaint without addressing the issue of service of the amended complaint.

In reply, Defendant attaches Exhibit A. Exhibit A is a series of emails in which Plaintiffs' counsel explains that Plaintiffs do not have to serve the amended complaint on Defendant.

As a preliminary matter, the Court finds it perplexing that Plaintiffs' counsel is under the impression that Plaintiffs do not have to serve the amended complaint on Defendant.

In Exhibit A, in a series of emails, Plaintiffs' counsel seems to argue that Plaintiffs do not have to serve the amended complaint on Defendant based on *Ford v. Superior Court* (1973) 34 Cal.App.3d 338, 348 and CCP § 471.5.

The Court fails to see how Plaintiffs' citations support the argument that amended complaints do not have to be served.

The portion of *Ford* that Plaintiffs' emails quote in Exhibit A is as follows, "A defendant who is in default as to the original complaint is entitled to service of an amended pleading making a change of substance, as

opposed to a change of form, and has a right to answer or demur thereto.” (Ford v. Superior Court (1973) 34 Cal.App.3d 338, 342.)

Problematic

with the citation to Ford is that it is inapposite here.

Ford does

not address the issue of whether or not a defendant has to be served amended complaints, in general. Ford pertained to amendments after default.

Here, no default has been entered against Defendant. Most importantly, Ford does not state that amended complaints, in general, do not have to be served on defendants so long as the amendment doesn’t make a substantive change. Ford was specifically in the context of a case in which a default was already entered, and amendments were made after default.

Likewise,

Plaintiffs’ citation in Exhibit A to CCP § 471.5 seems to hurt Plaintiffs’ argument that that FAC does not have to be served on Defendant.

Under

CCP § 471.5(a):

If the complaint is amended,
a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby.
The defendant shall answer the amendments, or the complaint as amended, within 30 days after service thereof, or such other time as the court may direct, and judgment by default may be entered upon failure to answer, as in other cases. For the purposes of this subdivision, “complaint” includes a cross-complaint, and “defendant” includes a person against whom a cross-complaint is filed.

(CCP, §
471.5(a), *emph. added.*)

Plaintiffs’

emails in Exhibit A appear to cite to 471.5 because Plaintiffs appear to be under the impression that Defendant would not be “affected thereby” because the amendment to the FAC was one of form that clarified that Defendant Paragon was

an Alabama entity rather than a Delaware entity.

Problematic

with Plaintiffs' citation to 471.5 is that it doesn't say anything about whether or not the amendment needs to be of form or substance in order for the amended complaint to be served.

The

language of 471.5(a) pertains to "defendants affected thereby."

The

Court fails to see how a defendant is not "affected thereby" if he/she/it is named in an amended complaint.

Not only

does it appear that 471.5(a) requires service of the amended complaint, but it appears that 472(a) requires service of an amended complaint.

Under

CCP § 472:

A party may amend its

pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading.

(CCP, §

472(a), *emph. added.*)

Although

this Court has no idea where Plaintiffs find legal authority to support their argument that amended complaints do not have to be served on defendants, the Court is hesitant to rule/opine on whether or not the FAC has to be served on the Defendant because that issue does not appear to be before this Court.

Whether

or not Plaintiffs have to serve the FAC on Defendant does not appear to be before this Court because the Court fails to see how it makes a difference in the instant procedural posture.

Since

this Court plans to deny Defendant's motion to strike on substantive grounds, because Plaintiffs do not come forward with authority stating that an unserved amended complaint supersedes a prior complaint, would service of the FAC even be before this Court on this motion?

For

example, if the Court denies the motion to strike on its merits, and afterwards if the parties do not agree on what the operative pleading is, and if Plaintiffs do not want to risk the operative pleading being the original complaint, then would it not be to Plaintiffs' benefit to stipulate under 472(a) as to amending the pleading?

Alternatively,

if the Court denies the motion to strike on its merits, and afterwards if the parties do not agree on what the operative pleading is, and if Defendant wants to attack lack of service of the FAC, would it not be up to Defendant to file a motion to quash service of summons, or whatever motion is appropriate, to attack the FAC/address the issue of service?

If the

Court denies the motion, it appears that as a practical matter either: (1) one party is going to have to follow the proper procedure/come to agreement to file/serve an amended pleading (or risk the original complaint being the operative complaint), or (2) one party is going to have to follow the proper procedure to challenge/attack lack of service of the FAC (or risk the FAC being the operative pleading).

Overall,

the Court is not quite clear as to how/if service is at issue in this motion to strike.

The

Court to hear argument.

Punitive

Damages – Substantive

Since

Plaintiffs' opposition does not come forward with on-point legal authority explaining that an amended complaint moots a prior complaint when the amended complaint is filed and not served on Defendant, and since Plaintiffs do not explain how their FAC is operative under CCP § 472(a), the Court will address Defendant's motion to strike targeted at the original complaint.

Defendant

moves to strike the punitive damages allegations in the original complaint located in the first (¶ 30 – battery), second (¶ 38 – false imprisonment), third (¶ 44 – Violation of Civil Code § 52.1), and fourth (¶ 50 – IIED) causes of action, as well as Plaintiffs' Prayer for Relief (¶¶ 1-4).

Defendant

argues that the complaint does not allege any conduct that qualifies as malice, oppression, or fraud.

The Court does not find Defendant's argument availing.

In

an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civil Code, § 3294(a).)

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code, § 3294(c)(1).)

“‘Oppression’

means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civil Code, § 3294(c)(2).)

“‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294(c)(3).)

Here,

although Plaintiffs’ complaint does not explicitly allege the words malice, oppression, or fraud, Plaintiffs’ complaint alleges conduct that a jury could find constitutes malice or oppression; therefore, Plaintiffs’ complaint successfully pleads a request for punitive damages.

With

respect to moving Defendant, Ana Reyes, Plaintiffs allege that Reyes grabbed Plaintiff’s (Ms. Trad) arm, twisted it behind her back, and placed a handcuff on one of her hands. (Compl., ¶ 16.)

Further,

Plaintiffs allege that Reyes pushed Ms. Trad to the floor and pinned her head into a corner. (Compl., ¶ 17.)

Additionally,

Plaintiffs allege that Reyes unlawfully restrained Ms. Trad for approximately eighteen minutes, alternating between kneeling on Ms. Trad and straddling her in order to keep her pinned to the floor. (Compl., ¶ 18.)

Plaintiffs

incorporate paragraphs 1-24 into the first four causes of action.

Defendant

seeks to strike the request for punitive damages in the first four causes of action and the request for punitive damages pertaining to the first four causes of action located in the Prayer for Relief.

Defendant’s

(Ana Reyes) motion to strike [targeted at the original complaint filed 3/2/2026] is DENIED because Plaintiffs’ complaint [see ¶¶ 16-18] sufficiently pleads a basis for a jury to potentially find that Defendant’s conduct constituted malice or oppression.